

Sudheer Gupta v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 23 March 2023 · WRIT - C No. 7983 of 2023 · **Petition disposed for a fresh Supply Code order after hearing.**

HEADNOTE

Writ against a recovery citation for alleged electricity-theft dues was disposed of after the electricity department withdrew the citation and stated that a fresh order would follow a hearing. The Court left the department to pass that order strictly under the procedure in the U.P. Electricity Supply Code, 2005, directed supply of the checking report and other adverse material within one week, and gave the petitioner two weeks thereafter to object.

FACTUAL SUMMARY

Sudheer Gupta petitioned the Allahabad High Court against a recovery citation dated 3 November 2022 issued by the electricity department for dues in an alleged case of theft of electricity. The respondents were the State of U.P. and four others. On 15 March 2023 counsel for the electricity department sought time to obtain instructions, and the petition was adjourned to 23 March 2023. On that date counsel stated that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given a hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh order after withdrawal of a theft-dues recovery citation

HOLDING

On the electricity department's statement that the recovery citation dated 3 November 2022 for alleged theft dues stood withdrawn, the writ was disposed of with liberty to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The concerned respondent must give the petitioner the checking report and other adverse material within one week, and the petitioner is to file objections within the next two weeks. ¶ 3-4

FLAG The order invokes the procedure prescribed under the U.P. Electricity Supply Code, 2005 and cites no clause number.

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code-after-adverse-material After the licensee withdrew a theft-dues recovery citation in the writ and proposed a fresh order following a hearing, the Court required that order to follow the procedure prescribed under the U.P. Electricity Supply Code, 2005, and required disclosure of the checking report and other adverse material before objections. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT DUES, IF ANY, ARE RECOVERABLE.

The Court recorded withdrawal of the citation and left both the allegation and the amount to a fresh order after disclosure and objections. ¶ 2-4